5

R.D. Bajaj v K.P.S. Gill

On Wednesday, 27 July 2005, senior civil servant Rupan Deol Bajaj's quest for justice finally came to a close. The Supreme Court confirmed the conviction of K.P.S. Gill, the 'supercop' who ended the militancy and Khalistan separatist movement in Punjab, for slapping her on the bottom at a party in 1988. This was the culmination of a legal process that was neither swift nor easy. It involved no less than eight judgements over a period of seventeen years; decisions by several senior judges; complaints *to* bureaucrats, *by* bureaucrats, *against* bureaucrats; and claims of government secrecy and privilege. In the time that the case meandered from one court to the next, India had seen eighteen chief justices and nine prime ministers. And yet, the legacy of this case remained highly contested.



On 18 July 1988, Surrinder Lal Kapur – an IAS officer and a senior bureaucrat in the Punjab government – hosted a dinner party at his home in Sector 16, Chandigarh. Kapur was known for throwing 'lively parties', with an abundance of alcohol, that were frequented by the city's elites.[1] This one was no different, with a guest list that included twenty-five of the most senior bureaucrats, police officers and lawyers in the city, many of whom were accompanied by their spouses. The joint director of the Intelligence